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Executive Order

Persons

RULES GOVERNING THE GRANTING AND ISSUING OF PASSPORTS IN THE UNITED STATES

37R681

Section 4075 of the Revised Statutes of the United States, as amended by the act of Congress approved June 14, 1902 (32 Stat. 386), provides that "the Secretary of State may grant and issue passports, and cause passports to be granted, issued, and verified in foreign countries by such diplomatic or consular officers of the United States, and by such chief or other executive officer of the insular possessions of the United States, and under such rules as the President shall designate and prescribe for and on behalf of the United States." The following rules are accordingly prescribed for the granting and issuing of passports in the United States.

Section I. Authority to Issue Passports in the United States and Abroad

1. Sections 4075 and 4078 of the Revised Statutes as amended by the Act of June 14, 1902 (32 Stat. 386) provide that no one but the Secretary of State may grant and issue passports in the United States, and he is empowered to refuse them in his discretion.

2. Passports are not issued by American diplomatic and consular officers abroad, except in cases of emergency. A citizen who is abroad and desires to procure a passport should apply therefor to the Secretary of State through the nearest American diplomatic or consular officer.

3. Passports are issued in the Virgin Islands, Hawaii, the Philippines and Porto Rico by the chief executives of those Islands. Applications for passports by persons residing therein should be made to such chief executives.

Section II. To Whom Passports Are Issued

4. Section 4076 of the Revised Statutes of the United States as amended by the Act of June 14, 1902 (32 Stat. 386), provides that "no passport shall be granted or issued to, or verified for, any other persons than those owing allegiance, whether citizens or not, to the United States."

5. A passport will not be issued to a minor contrary to the request of the parental or other guardian.

Section III. Persons Who May Be Included in One Passport

6. Only persons who are citizens or who owe allegiance to the United States may be included in a passport of the United States.

7. A passport issued to a husband or father may include his wife and minor children. A woman's passport may include her minor children.

8. A minor brother or sister may be included in the passport of an older brother or sister.

9 A minor grandchild, niece or nephew of tender years may be included in the passport of the relative when the application therefor is accompanied by a request from the parental or other guardian.

10. Members of the immediate family who are 21 years of age, maidservants and manservants must bear separate passports.

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Section IV. Fee for the Execution of an Application and for a Passport; Passports Issued Without Fees

11. Section 1 of the Act of June 4, 1920 (41 Stat. 750) provides in part as follows:

> "From and after the 1st of July, 1920, there shall be collected and paid into the Treasury of the United States quarterly a fee of $1 for executing each application for a passport and $9 for each passport issued to a citizen or person owing allegiance to or entitled to the protection of the United States: ----------
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> "* * * that no fee shall be collected for passports issued to officers or employees of the United States proceeding abroad in the discharge of their official duties, or to members of their immediate families, or to seamen, or to widows, children, parents, brothers, and sisters of American soldiers, sailors, or marines buried abroad whose journey is undertaken for the purpose and with the intent of visiting the graves of such soldiers, sailors, or marines, which fact shall be made a part of the application for the passport."

12. Under the provisions of the foregoing act a fee of $1.00 must be collected for the execution of each application for a passport. There is no exception to this rule.

13. A fee of $9.00 must be collected for each passport issued except as hereinafter provided in rule 14.

14. In accordance with the provisions of the Act of June 4, 1920 (41 Stat. 750) no fee should be collected for passports issued to officers or employees of the United States proceeding abroad in the discharge of their official duties, or to members of their immediate families, or to seamen, or to widows, children, parents, brothers and sisters of American soldiers, sailors, or marines buried abroad whose journey is undertaken for the purpose and with the intent of visiting the graves of such soldiers, sailors, or marines.

15. The fee of $9.00, payable except as provided in Rule 14, in currency, postal or express money order must accompany each application for a passport. Postal or express money orders should be made payable to the Disbursing Clerk, Department of State. Drafts or checks will not be accepted in the payment of passport fees.

Section V. Applications for Passports

16. The Act of June 15, 1917 (Title IX, Section 1, 40 Stat. 227) requires every applicant for a passport issued under the authority of the United States to submit a written application, duly verified by his oath and containing a true recital of each and every matter of fact which may be required by law or by rules authorized by law as a prerequisite to the issuance of a passport.

17. The application should be made in person and signed by the person to whom the passport is to be issued.

18. The application must be made before a clerk of a Federal court or a State court authorized by the Act of Congress of June 29, 1906 (34 Stat. 596), to naturalize aliens, or before an agent of the Department of State.

19. The seal of the court, when the application is executed before a clerk of court, or the seal of the agency of the Department, when the application is executed before such agent must be affixed to the application.

20. Where the application is not made at or near the place where the applicant resides, the applicant should give the name and address of a reputable person, residing at or near the place of the applicant's residence, to whom the clerk of court, the Department's agent, or the Department itself may address such inquiry as may be necessary concerning the applicant. Where it is necessary to make inquiries by telegraph, the applicant should bear the expense thereof.

Section VI. Contents of Application for a Passport

a. General. Each application for a passport must contain the following:

21. The applicant's name.

22. The names, places and dates of birth of other persons to be included in the passport (wife and minor children).

23. If the wife is to be included in the husband's passport the place and date of the marriage.

24. The place and date of the applicant's birth.

25. The name of the applicant's father, the country of his birth and his present place of residence. If the applicant is a married woman the same information must be given concerning her husband.

26. When and for what period of time the applicant has resided outside of the United States.

27. The applicant's place of permanent residence, if any, in the United States and the occupation followed by him at that place.

28. The number, date, place of issue, and the disposition made of any previous passport issued to the applicant.

29. The period within which the applicant intends to return to the United States for permanent residence.

30. The applicant's intended port and date of departure, and the name of the vessel, if passage has been arranged for in advance.

31. The applicant's oath of allegiance to the United States.

32. The applicant's signature in full; thus, John Henry Smith, not J. H. Smith.—A married woman should sign her own Christian name or names with the family name of her husband; thus, Mary Elizabeth Doe; not Mrs. John Doe. If the applicant is a married woman who desires the use of her maiden name on her passport, she may, in applying for a passport, use her maiden name and sign her application with that name followed by the name of her husband, thus: "Mary Doe (wife of John Jones)", provided she submits satisfactory proof that she customarily uses her maiden name and is regularly known thereunder in the community where she lives. If the applicant signs by mark, two attesting witnesses to the signature are required.

33. Description of the applicant.

b. Object of the applicant's journey abroad.

34. The applicant for a passport must state in his application the names of the countries he expects to visit and the object of the visit to each.

35. The Secretary of State may within his discretion require an applicant for a passport, or for the amendment or extension of a passport to submit satisfactory evidence of the object of his journey abroad.

c. Photographs of the applicant and persons accompanying the applicant.

36. The application must contain a photograph of the applicant and the persons, if any, by whom the applicant is accompanied. A group photograph of all the persons to be included in the passport is preferable.

37. Photographs should have a light background and must be on thin paper not more than 3 by 3 inches and not less than 2½ by 2½ inches in size.

38. The photograph of the person or persons included in the application must be attached to the back of the application under the seal of the officer before whom the application is executed.

39. A duplicate copy of the photograph attached to the application must accompany the application for use in the passport for which application is made.

40. Passport photographs must be signed by the applicant, the signature to correspond with the signature in the application.

41. Photographs in uniform will not be accepted except from applicants who are in the active service of the military forces of the United States and who intend to proceed abroad on official business.

d. Affidavit of a supporting witness.

42. The applicant must be accompanied by at least one credible witness, a citizen, who has known the applicant for a period of two or more years.

43. The application should contain the supporting affidavit of such a witness who must state the period of time during which he has known the applicant; that the applicant is the person whom he represents himself to be, and that his statements are true to the best of his knowledge and belief.

44. The applicant or the witness should reside within the jurisdiction of the officer before whom the application is executed.

45. No lawyer or other person who expects to receive a fee in connection with the application or passport will be accepted as a witness.

46. A passport issued by the Secretary of State on or after January 3, 1918, to which is affixed the photograph and signature of the person to whom the passport was originally issued will be accepted in lieu of an identifying witness.

e. A woman's application.

47. A woman who has never been married must state in her application that she has not been married.

48. A married woman must state in her application the date of her marriage.

49. A widow or divorcee must state in her application the date of her marriage and the date of the termination of the marital relation.

f. Applications of naturalized citizens.

50. An applicant who is a citizen through his own naturalization, must state in his application the date of his immigration, the period of his continuous residence in the United States, the name of the court and place in which he was naturalized and the date of his naturalization as shown in his certificate or record of naturalization. He must also state the precise periods and places, of his foreign residence, if any, subsequent to naturalization. If the signature in the application does not conform to the applicant's name as written on his certificate of naturalization, an explanation of the difference should be submitted.

51. If the applicant claims citizenship through the naturalization of husband or father, the applicant must state that he or she is the wife or child, as the case may be, of the person described in the certificate of naturalization, and with reference to the husband or father, the date of his immigration, period of his continuous residence in the United States, the name of the court and place in which he was naturalized, and the date of his naturalization as shown by the certificate or record of naturalization. The applicant must also state the period of his or her own continuous residence in the United States and the precise periods and places, if any, of his or her foreign residence subsequent to the naturalization of the husband or father.

g. Application of a resident of an insular possession of the United States who owes allegiance to the United States.

52. A resident of an insular possession of the United States who owes allegiance to the United States must state in his application that he owes allegiance to the United States and that he does not acknowledge allegiance to any other government.

Section VII. Applications of Officers or Employees of the United States, and of Their Immediate Families

53. Officers or employees of the United States proceeding abroad under orders must submit with their applications a written request, from the head of the Department or office in which the applicant is employed, for the issue of a passport to the applicant. The request should set forth the nature of the employment of the applicant and the official nature of his journey abroad.

54. Applicants for passports who are the members of the immediate family of an officer or employee of the United States who is about to proceed abroad or who is abroad in the discharge of official duties are not required to submit documentary evidence of their status if they refer to a passport issued to such an officer or employee of the United States.

Section VIII. Applications of American Seamen

55. As a rule American seamen traveling as such should use in lieu of passports the Seaman's Certificate of Citizenship issued by Customs officials. Nevertheless passports are issued to seamen who are citizens or who owe allegiance to the United States whenever passports are required upon the travel in which the seaman is engaged.

56. A seaman must transmit with his application, for cancellation, the Seaman's Certificate of American Citizenship or other official document of nationality or identity of which he is the bearer.

Section IX. Applications of Persons Visiting the Graves of American Soldiers, Sailors or Marines Buried Abroad

57. An application for a passport executed by a widow, child, parent, brother, or sister of an American soldier, sailor, or marine buried abroad must be accompanied by a statement from the War Department, Washington, setting forth the name of the deceased American soldier, sailor, or marine to whom the applicant claims relationship and that the body is buried in a foreign country. Passports issued upon such applications will be valid only for the country to be visited, and countries en route, and for the purpose of visiting the grave.

Section X. Evidence of Citizenship to Accompany Applications for Passports

a. Native citizen.

58. A person born in the United States in a place where official records of birth were kept at the time of his birth must submit with the application a birth certificate under the seal of the official custodian of birth records. A certificate to be acceptable must show the place and date of birth and that the record thereof was made at the time of birth or shortly thereafter. If a birth certificate is not obtainable that fact should be shown and the application should be supported by a baptismal certificate or a certified copy of the record of baptism under the seal of the church in which the applicant was baptized, giving the place and date of birth, the date of baptism and the date on which the record of baptism was made. A baptismal certificate to be acceptable must show that the baptism occurred within a short time after the birth of the applicant. If birth and baptismal certificates are not obtainable an affidavit of the parent or of the physician, nurse, or midwife, who attended the birth, or the affidavit of a reputable person having sufficient knowledge to be able to testify as to the place and date of the applicant's birth may be accepted. A person who did not attend the birth but who testifies concerning the place and date of the applicant's birth should state briefly how, and through what source the knowledge was acquired.

59. A person born abroad whose father was a native citizen of the United States must submit with the application the evidence of the father's birth in this country as required in the preceding section.

60. If the applicant comes within the provisions of Rules 58 or 59 reference to a previous application with which the required evidence of birth was submitted will be sufficient, provided the application upon which a previous passport was issued is found to contain the necessary record of the evidence submitted.

b. Persons claiming citizenship through naturalization of self or parent.

61. A person claiming citizenship through naturalization against whom the presumption of having ceased to be an American citizen has arisen under the provisions of Section 2 of the Act of March 2, 1907 must submit with his application a supplementary affidavit explaining his protracted foreign residence.

62. A person naturalized in his own right must transmit with his application his certificate of naturalization or a duly certified copy of the court record of the naturalization.

63. The Child of a Naturalized Citizen claiming citizenship through the naturalization of the parent must submit with the application the parent's certificate of naturalization or a duly certified copy of the court record of the naturalization.

64. A Child Born Abroad after the Naturalization of the Parent must submit with his application evidence of the nature described in the preceding Rule.

65. If the applicant comes within the provisions of Rule 62, 63 or 64 his old passport will be accepted in lieu of a certificate of naturalization, provided the application upon which a previous passport was issued is found to contain sufficient information as to the naturalization of the applicant or the parent.

c. Adopted child included in the passport of the foster parent or parents.

66. When an adopted minor child is to be included in the passport of the foster parent or parents the application should be accompanied by documentary evidence of the adoption of the child and evidence of the citizenship of the child.

d. Wife included in Husband's Application.

67. When a wife is to be included in the husband's passport, in addition to evidence of his own citizenship his application must be accompanied by the usual evidence of the wife's citizenship if they were married on or after September 22, 1922.

Section XI. Evidence of Citizenship to Accompany a Woman's Application for a Passport

a. Unmarried women.

68. An unmarried woman, who is a native citizen, should submit the evidence required by Rule 58, 59 or 60. If she is naturalized in her own right she should submit the evidence required by Rule 62 or 65. If she obtained citizenship through naturalized parent, she should submit the evidence required by Rule 63, 64 or 65.

b. Married women.

69. A married woman who was married to an American citizen prior to the passage of the Act of September 22, 1922 (42 Stat., pt. 1, 1021), should submit the evidence of her husband's citizenship as required by Rules 58 to 65. If she was married on or after September 22, 1922, she should submit documentary evidence of her own citizenship as follows: Birth evidence under Rules 58 to 60, certificate of naturalization or a duly certified copy of the court record of the naturalization under Rule 62 or 65, or her parent's certificate of naturalization or a duly certified copy of the court record of the naturalization under Rules 63 to 65. She should also state her husband's nationality in her application.

70. American women who were married to aliens prior to March 2, 1907 may receive passports upon submitting proof that they were American citizens at the time of their marriage unless they lost their American citizenship by naturalization through marriage, under the terms of a treaty of naturalization to which the United States was a party at the time of such marriage.

71. An American woman married to an alien on or after September 22, 1922 against whom the presumption of having ceased to be a citizen has arisen under the provisions of Section 3 of the Act of September 22, 1922 must submit with

her application a supplementary affidavit explaining her protracted foreign residence.

c. Widow or Divorcee.

72. A widow or divorcee irrespective of the place of her birth, who acquired citizenship through marriage to an American citizen prior to the passage of the Act of September 22, 1922, must submit evidence of the husband's citizenship in accordance with Rules 58 to 65.

73. A divorcee who was married on or after March 2, 1907, but prior to September 22, 1922 and who claims citizenship in her own right should submit with her application the original decree of divorce or a certified copy of the court record of the decree of divorce and should prove her own citizenship as required in rules 58 to 65.

74. American widows who lost their American citizenship by marriage to an alien subsequent to the passage of the Act of March 2, 1907, and prior to the passage of the Act of September 22, 1922, and who have resumed their citizenship under the provisions of the Act of March 2, 1907, should state the facts concerning their resumption of American citizenship. Those naturalized under the provisions of Section 4 of the Act of September 22, 1922, (42 Stat. pt. 1, 1021), must submit their certificates of naturalization.

75. Alien-born widows or divorcees who acquired citizenship by marriage to an American prior to the passage of the Act of September 22, 1922, and who have retained their citizenship under the provisions of Section 4 of the Act of March 2, 1907, should state the circumstances under which they retained their American citizenship.

76. If the applicant was married on or after September 22, 1922, she should state the facts and prove her own citizenship in accordance with Rules 58 to 65 and should state the nationality of her husband at the time her marital status terminated.

XII. A resident of an insular possession of the United States who owes allegiance to the United States.

77. A resident of an insular possession of the United States who owes allegiance to the United States and who was born where official records of birth were kept at the time of his birth, must submit with his application evidence of citizenship of the nature described in Rule 58, except that two affidavits must accompany the application when a proper birth or baptismal certificate or an affidavit cannot be obtained from a person who attended the birth. The affidavits must be executed by credible persons who should state briefly how and through what source the knowledge of the date and place of the applicant's birth was acquired.

Section XIII. The Use of Titles and Business, or Professional Names in Passports

78. Professional and other titles will not be inserted in passports, but an applicant's name in religion, an author's *nom de plume*, a stage or business name, etc., may be included in parentheses after the bearer's name.

Section XIV. Additional Regulations

79. The Secretary of State is authorized to make regulations on the subject of granting and issuing of passports additional to these rules and not inconsistent with them.

CALVIN COOLIDGE

The White House,
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